



Summary Report

Agenda Date: 3/12/2019

To: Board of Supervisors
Department or Agency Name(s): Sheriff's Office
Staff Name and Phone Number: Connie Newton 565-8884
Vote Requirement: Majority
Supervisory District(s): All

Title:

Body Worn Camera Contract Amendment

Recommended Actions:

Authorize the Sheriff to amend the existing Body Worn Camera Services Agreement with Axon Enterprise, Inc. to extend the current term for 5 years through February 28, 2024, and to purchase additional cameras for the Detention Division in an amount of \$2,344,962.24 for the 5-year term extension, for a total not-to-exceed contract cost of \$3,525,000 over the entire 9 year and 4 month term. This contract benefits the public by providing deputies with essential law enforcement and detention equipment and by promoting transparency.

Executive Summary:

This item requests the Board authorize the Sheriff to execute a First Amendment ("Amendment") with its current body worn camera provider, Axon Enterprise, Inc., ("Axon") to extend the current term for 5 years and to purchase additional cameras to expand the Sheriff's Body Worn Camera Program to the Detention Division. The Amendment allows for the procurement of the new Detention cameras, related hardware and software, ongoing support, data storage, and periodic upgrades to the technology. To obtain the best pricing for this expansion, the current Agreement is being amended to incorporate the Sheriff's existing body worn cameras (Patrol deputy cameras) and new body worn cameras (correctional deputy cameras) under one comprehensive program. The cost for the products and services provided by Axon under the 5 year Amendment are estimated at \$2,344,962.24, for a total cost of \$3,525,000 for the entire agreement.

Discussion:

Body worn cameras and audio visual recordings of law enforcement interactions provide increased transparency and accountability to law enforcement and the public. Video and audio recordings can provide an objective record of events and provide documentary evidence for criminal investigations, internal or administrative investigations, and civil matters. The use of body worn cameras is intended to enhance the mission of the Sheriff's Office by accurately capturing contacts between members of the Sheriff's Office and the public. Body worn cameras have proven to help expedite the resolution of citizen complaints, assist prosecutors, and reduce staff overtime. Arguably one of the most significant benefits of using the body worn camera technology is the role it plays in offering insights into critical incidents, for example, as a tool for validating the sequence of events.

In 2014, the Board authorized the Sheriff to execute the documents necessary to implement a body worn camera program for the Sheriff's Patrol Bureau. Two hundred and forty one (241) body worn cameras were

deployed to field officers in the Patrol Bureau and 24 cameras were deployed to members of the Detention Divisions specialized response teams. This Program also included establishing policies and produces for use, data storage, and retention. As a result of the success of the initial implementation of our Body Worn Camera Program in Patrol and changes in the industry standard for producing recordings of critical incidents, the Sheriff would like to expand the Program to its Detention Division by adding 185 cameras, equipping all correctional deputies and sergeants with body worn cameras. With this addition, the Sheriff's Body Worn Cameral Program will consist of a total of 450 cameras.

The proposed Amendment with Axon will consolidate both the Patrol and Detention Division cameras under one Agreement. The Agreement provides for the hardware (camera and docking station), hardware warranties, accessories, data storage, and software that provides functionalities for video retrieval, redaction, and sharing of video recordings. The existing Agreement that provides for the Patrol cameras is due to expire December 2019. Because of the desire to expand the Sheriff's Program to the Detention Division as soon as possible, the Amendment replaces the last eight months of the current Agreement with this new, five year Amendment. The Amendment will cover all of the Sheriff's body worn cameras, docking stations, software, ongoing support and maintenance, and data storage.

Axon bases its pricing on five year terms to include the costs of product warranties and technology upgrades approximately every 2.5 years. These upgrades ensure that deputies are operating with the most up-to-date equipment and that all of the equipment is being maintained by the vendor. Often times piecemeal upgrades to technology result in parts of a system no longer being supported or manufactured by the vendor. Axon ensures the entire system is periodically upgraded. The new contract costs are approximately \$240 or 26% more per camera compared to the prior contract. This increase is due to the cumulative data storage, upgraded equipment, and anticipated ongoing data storage needs.

When the original Axon Agreement (formerly Taser International) was presented to the Board in 2014, County Purchasing approved a single source waiver and requested that the Sheriff complete a competitive bidding process before December 2019, when the Agreement expired. In 2014 body worn cameras were a relatively new technology for law enforcement and just entering the market. At that time there were few providers, which lead to Axon being a single source vendor. Today the industry is more established, but Axon still holds a majority of the market. In consideration of the market and the proposed Amendment, County Purchasing still recommends that the Sheriff's Office proceed with a competitive bid in the future; however, County Purchasing supports delaying the competitive bid process and proceeding with this proposed expansion and extension, acknowledging Axon's multiple "piggyback" awards. "Piggybacking" refers to contracts issued by individual governmental entities that allow other jurisdictions to use the contract terms and prices they established, provided that the vendor agrees. Axon received an award from the OMINA Partner National cooperative purchasing organization and recently was awarded two additional national cooperative pricing awards. The Sheriff's Office will complete a Request for Proposal competitive bidding process as soon as practical. In order for the Sheriff's Office to complete a comprehensive and effective Request for Proposal, Sheriff's staff need to obtain data and observations from the full scale Detention body worn camera deployment. This deployment will need to be fully operational for a period of time before this information will be available. Therefore, the Sheriff anticipates completing the Request for Proposal process by February 2021. If a new vendor is selected the Sheriff can terminate its Agreement with Axon at any time.

Funding for both the Sheriff's Patrol and Detention Division Body Worn Camera Program is included in the

Agenda Date: 3/12/2019

Sheriff's FY 18-19 Adopted budget. Ongoing support and upgrade costs will be included in the Sheriff's future recommended budgets.

Prior Board Actions:

December 9, 2014 - Board approved the Sheriff's Body Worn Camera contract and implementation. □

FISCAL SUMMARY

Expenditures	FY 18-19 Adopted	FY19-20 Projected	FY 20-21 Projected
Budgeted Expenses	378,346	491,654	491,654
Additional Appropriation Requested			
Total Expenditures	378,346	491,654	491,654
Funding Sources			
General Fund/WA GF	113,346	491,654	491,654
State/Federal			
Fees/Other	245,000		
Use of Fund Balance			
Contingencies			
Total Sources	378,346	491,654	491,654

Narrative Explanation of Fiscal Impacts:

Funding for both the Sheriff's Patrol and Detention Division Body Worn Camera Program is included in the Sheriff's FY 18-19 Adopted budget. For the Detention expansion, the Sheriff agreed to use asset forfeiture funds for implementation costs of purchasing the equipment, establishing a location and network connectivity for the docking stations, and for trainings staff. The Board agreed to fund the ongoing costs after the first year. Ongoing support and upgrade costs will be included in the Sheriff's future recommended budgets.

Staffing Impacts:			
Position Title (Payroll Classification)	Monthly Salary Range (A - I Step)	Additions (number)	Deletions (number)

Narrative Explanation of Staffing Impacts (If Required):

None.

Attachments:

Amendment for Body Worn Camera Services

Agenda Date: 3/12/2019

Related Items “On File” with the Clerk of the Board:

Original Agreement with Taser (now Axon) for body Worn Camera Services